

26CHCV00287 26CHCV00287

County: los-angeles

Division: Civil Law and Motion

Department: F47

Hearing date: 2026-09-11

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Case Number: 26CHCV00287 Hearing Date: September 11, 2026 Dept: F47

Dept. F47

Date: 9/11/26

Case #26CHCV00287

MOTION FOR

RELIEF FROM DEFAULT

Motion filed on 5/1/26.

MOVING PARTY: Defendant Ronald Alcazar

RESPONDING PARTY: Plaintiff 1102-1112 Arroyo Street LLC

RELIEF REQUESTED: An order granting relief from default.

RULING: The motion is denied.

SUMMARY OF FACTS & PROCEDURAL HISTORY

On 1/21/26, Plaintiff 1102-1112 Arroyo Street LLC

(Plaintiff) filed this unlawful detainer action against Defendants Mr.

Tortilla, Inc.; Anthony Alcazar (Anthony) and Ronald Alcazar (Ronald) regarding commercial property located at 1104 Arroyo Street in San Fernando, California (the Premises).

On 2/18/26, default was entered against Mr. Tortilla, Inc. and Ronald. On 2/27/26, default was entered against Anthony. On 3/4/26, default judgment was entered against Mr. Tortilla, Inc., Ronald and Anthony granting Plaintiff possession of the Premises and a monetary award of \$76,653.92. On 3/16/26, a writ of execution and possession was issued.

On 5/1/26, Ronald, representing himself, filed and electronically served the instant motion seeking an order granting relief from default. The motion was originally scheduled for hearing on 9/11/26, which is the date listed in the caption of the motion. On 5/4/26, the Court denied Ronald's ex parte application for stay of execution and shortening time for hearing on the instant motion. (See 5/4/26 Minute Order). Also, on 5/4/26, Ronald himself, rescheduled the hearing on the instant motion from 9/11/26 to 7/7/26. However, there is no evidence in the court file that Ronald provided notice to Plaintiff of the change in hearing date.

Since there was no opposition or other response to the motion to cure the defect in notice regarding the change in hearing date, the 7/7/26 hearing on the motion was continued to the originally scheduled date of 9/11/26 to ensure that Plaintiff had proper notice and an opportunity to respond. On 8/25/26, Plaintiff filed and served an opposition to the motion. A reply to the opposition has not been filed.

ANALYSIS

Plaintiff's Request for Judicial Notice is granted as Nos. 3 and 7 and as to the existence of such documents in the court files with regard to Nos. 1, 2, 4, 5, 6, 8, 9.

A party may obtain relief from a default that was entered as a result of mistake, inadvertence, surprise and/or excusable neglect. CCP 473(b). The motion concedes that Defendants were behind in rent; they received the 3-day notice, and that they received the complaint. (See R. Alcazar Decl.). However, Ronald contends that the Defendants did not file an answer in this action because they believed they had settled the case. Id. Ronald claims that Plaintiff's unidentified agents misled Defendants into believing that they could remain in possession if they "brought the account forward." Id.

Ronald contends that Defendants have a valid defense

because although the lease expired on 9/30/25, the 3-day notice demanded rent for October and November when the lease was no longer in effect.

Ronald has failed to show that the default (or default judgment) was entered as a result of excusable neglect as claimed in the notice of motion. (See Motion, p.1:19-20). The proofs of service evidence that Ronald was properly served with the summons and complaint in his capacity as Agent for Service of Process for Mr. Tortilla and in his personal capacity on 1/29/26. (RJN, Nos. 4-6). The summons provided Ronald with notice of his obligations upon being served with the summons and complaint. (RJN, No.4). Additionally, Ronald was served with Plaintiff's Request for Entry of Default and Plaintiff's Motion for Relief From Stay regarding co-Defendant Anthony's bankruptcy filing which was granted on 1/6/26. (See RJN, Nos. 1-3, 7-9).

Ronald also fails to provide any evidence, other than his self-serving, and vague declaration regarding a purported settlement with Plaintiff that misled the Defendants into believing they did not need to respond to the complaint. No information is provided regarding the purported agents of Plaintiff who misled Defendants, the specific terms of the settlement, etc. Ronald also offers no documentary evidence to support the claimed settlement.

Additionally, a commercial landlord may accept payments after the expiration of the notice to pay rent or quit without waiving the right to seek possession in an unlawful detainer action as long as the landlord provides notice that acceptance of partial payment does not constitute a waiver of any rights. See CCP 1161.1(c). Such notice was provided in the 3-day notice to pay rent or quit. (See RJN, No.4).

Ronald's claim that the Defendant's have a valid defense to the action based on the amount stated in the 3-day notice which included rent for months after the lease expired is without merit. Pursuant to the terms of the lease, the lessee had no right to retain possession after the lease expired. Additionally, in the event of a holdover, the lease provided that the base rent shall increase by 150%. (RJN, Nos.4, 9). As such, the parties agreed to the increase in base rent in the event of a holdover and such amount was properly included in the 3-day notice. See Constellation-F, LLC (2020) 45 CA5th 22, 26; JJD-HOV Elk Grove LLC (2024) 17 C5th 256, 265-266. This scenario is

distinguishable from those in the cases cited by Ronald (Cowell (1911)
15 Cal.App. 634; Colyear (1936) 7 C2d 735; Campbell (2024) 98
CA5th 1151) where no such holdover provision was included and agreed upon in
the lease.

CONCLUSION

The motion is denied.